



CERTIFICATION

This is to certify that the attached **Ordinance Numbered 54, Series of 2009**, entitled "**PROFESSIONALIZING THE BARANGAY TANOD SYSTEM (BTS) IN THE CITY OF BAGUIO**" which was passed by the *Sangguniang Panlungsod ng Baguio* on **15 June 2009** and approved by the Acting City Mayor on **07 July 2009**, was duly posted in the bulletin boards at the Baguio City Hall, at the Baguio City Market and at the Baguio Health Department for at least three (3) consecutive weeks starting **09 July 2009**.

The text of the said ordinance was published in the issue dated **15 July 2009 (Vol. 13, No. 246)** of the **Sun Star Baguio**.

Baguio City, Philippines, this 30th day of July 2009.


PRUDENCIO M. PARNACIO
City Secretary 



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 15 JUNE 2009

PRESENT:

Hon. Daniel T. Fariñas, *City Vice Mayor and Presiding Officer*;
Hon. Rocky Thomas A. Balisong, *Member*;
Hon. Betty Lourdes F. Tabanda, *Member*;
Hon. Galo D. Weygan, *Member*;
Hon. Perlita L. Chan-Rondez, *Member*;
Hon. Nicasio M. Aliping Jr., *Member*;
Hon. Antonio R. Tabora Jr., *Member*;
Hon. Erdolfo V. Balajadia, *Member*;
Hon. Nicasio S. Palaganas, *Member*;
Hon. Isabelo B. Cosalan Jr., *Member*;
Hon. Richard A. Cariño, *Member*;
Hon. Fred L. Bagbagen, *Member*;
Hon. Elaine D. Sembrano, *Member*;
Hon. Joel A. Alangsab, *Member*; and
Hon. Gloria Ysabel V. De Vera, *Ex-Officio Member*.

ABSENT:

None.

*Introduced by Hon. Betty Lourdes F. Tabanda
and co-authored by Hon. Nicasio M. Aliping Jr.*

ORDINANCE Numbered 54
(Series of 2009)

PROFESSIONALIZING THE BARANGAY TANOD SYSTEM (BTS)
IN THE CITY OF BAGUIO

Explanatory Note

Section 391 (16) of the Local Government Code of 1991 provides that the barangay may provide for the organization of a community brigade or barangay tanod (BT) to assist in the peace and order efforts of the Local Government Unit (LGU).

Consistent with the thrust of the government towards building a strong republic, there is a need to strengthen the capability of the BT being the front liners in addressing the peace and order concerns of the locality. Their professionalism, therefore, is a primordial concern.

The Department of the Interior and Local Government (DILG) issued Memorandum Circular No. 2003-42 on 10 March 2003 setting the guidelines on professionalizing the barangay tanod. The professionalization program is basically focused on developing their knowledge, skills and attitudes that would make them more responsive to the call of their duty.

NOW THEREFORE, on motion of Hon. Aliping and Hon. Balajadia, seconded by Hon. Cosalan, Hon. Chan-Rondez, Hon. Bagbagen and Hon. Tabanda,

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD (CITY COUNCIL) IN SESSION ASSEMBLED THAT:

SECTION 1. Title. This Ordinance shall be known as the "*Professionalizing the Barangay Tanod System (BTS) in the City of Baguio Ordinance*".

SECTION 2. Statement of Policy. It is the policy of the City Government of Baguio to maintain peace and order in the local communities in its jurisdiction. In furtherance of this policy, there is a need to strengthen community-based mechanisms and push for government initiatives for the crime prevention and promotion of public safety. The city shall establish partnership with the private sector for a stronger alliance in pursuit of this policy.

SECTION 3. Legal Bases.

3.1 Chapter 2, Section 387 (b) of the Local Government Code of 1991 provides that "*the sangguniang barangay may form community brigades and create such other positions or offices as may be deemed necessary to carry out the purposes of the barangay government in accordance with the needs of public service, subject to the budgetary limitations on personal services prescribed under Title Five, Book II of this Code.*"

3.2 Chapter 4, Section 393 (d) provides that "*All duly appointed members of the barangay tanod brigades or their equivalent, which shall number not more than twenty (20) in each barangay, shall be granted insurance or other benefits during their incumbency, chargeable to the barangay or the city or municipal government to which the barangay belongs.*"

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SECTION 4. Administration.

4.1 The Barangay Tanod (BT) is a community brigade composed of civilian volunteers duly appointed by the Punong Barangay, upon the recommendation of the Barangay Peace and Order Committee (BPOC). They shall be supervised by the Punong Barangay who shall also designate a Chief Tanod to head the group.

4.2 The term of appointment of a BT member shall be for three years, which may be renewed unless earlier revoked for a valid cause. Renewal of appointment shall require favorable recommendation of the BPOC.

4.3 The basic operational area of the BT is their own barangay. However, the BT may be deployed outside their area of responsibility when requested to assist in other barangays upon written request to the concerned Punong Barangay.

SECTION 5. Screening Committee:

5.1 City Councilor Chairman of the Committee on Human Rights, Justice, Public Protection and Safety, Peace and Order.

5.2 One representative from the Baguio City Police Office (BCPO).

5.3 Punong Barangay of the concerned barangay.

5.4 Barangay Peace and Order Committee (BPOC).

5.5 President of the Federation of Barangay Tanods.

SECTION 6. Qualifications.

6.1 A Filipino citizen;

6.2 Must be a resident for at least six months in the barangay where he is appointed;

6.3 Must be a registered voter;

6.4 At least 18 years old but not more than 60 years old;

6.5 Can read and write but preferably high school graduate;

6.6 Of good moral character; and

6.7 Physically and mentally fit.

Retired government employees, police or military personnel/officers may be appointed.

SECTION 7. Equipage.

7.1 Uniform. *maong* pants, white t-shirt, vest with markings and name, ball cap and rubber shoes shall be the minimum requirement. ID shall be worn as part of their uniform to be provided by the barangay.

7.2 Gadgets.

a) Nightstick with teargas (*probaton*) with belt and holster;

b) Handcuff with holster;

c) Whistle;

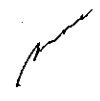
d) Flashlight;

e) Raincoat;

f) Rainboots;

g) Small notebooks and ballpens; and

h) First aid kit.



SECTION 8. Duties and Responsibilities.

Under the supervision of the Punong Barangay, the Barangay Tanod (BT) shall:

- 8.1 Assist the barangay official in the prevention of crime and promotion of public order and safety;
- 8.2 Conduct patrol/ronda in the barangay;
- 8.3 Report to the concerned barangay official or through police hotlines the occurrence of any crime, fire, accident, public disturbance and environmental degradation activities and other untoward incident in the barangay;
- 8.4 Monitor the presence and/or activities of suspicious persons, criminals and other lawless elements within their jurisdiction and report the same to the proper authorities;
- 8.5 Conduct surveillance on crime breeding areas within the barangay and report their findings to the proper authorities;
- 8.6 Assist the police and the Lupong Tagapamayapa in the execution of warrants and other judicial process such as tracking the whereabouts of missing persons, in arresting escaped prisoners and other fugitives from justice, and in the recovery of stolen properties;
- 8.7 Coordinate closely with barangay officials and police/local authorities in the drive against all forms of crimes such as terrorism, smuggling, carjacking, drug trafficking, drug pushing, illegal gambling, child abuse, crime against women, all forms of vices and syndicated crimes;
- 8.8 Assist in the implementation of the Fire Code of the Philippines;
- 8.9 Detect all forms of fire hazards and other public safety hazards/violations and to institute corrective measures within their capability;
- 8.10 Assist in facilitating smooth flow of traffic; and
- 8.11 Perform other functions as may be directed by the Punong Barangay.

SECTION 9. Training and Capacity Building. The Department of the Interior and Local Government (DILG) – Baguio City Field Office shall assist in the implementation of this program pursuant to the guidelines contained in the DILG Memorandum Circular Numbers 2003-43 and 2003-44, both dated 10 March 2003.

SECTION 10. Benefits.

10.1 All duly appointed members of Barangay Tanod (BT) shall be granted honoraria/allowance of not less than Six Hundred Pesos (P600.00)/month, insurance or other benefits stated under Section 393 of the Local Government Code during their incumbency.

10.2 Pursuant to the Commission on Higher Education (CHED) Order No. 62, Series of 1997, a maximum of two (2) children of the Barangay Tanod (BT) shall be provided study grants, provided that they meet the following qualifications:

- a) Children of a Barangay Tanod (BT) as certified by the Punong Barangay;
- b) Not more than 21 years old at the time of application;
- c) High School graduate whose average rating is 80% or higher;
- d) Have passed the entrance examination of the state college or university where he/she intends to enroll; and
- e) Financially incapable to pursue college education and whose parent's annual income does not exceed Seventy-Two Thousand Pesos (P72,000.00).

This scholarship privilege to tanod dependents shall only be effective while the tanod concerned is still active as a tanod volunteer, or following the death of the tanod in the actual performance of his duties as tanod.

10.3 Insurance and other benefits during their incumbency shall be chargeable to the barangay funds to which the barangay tanod belongs or the City Government but subject to availability of funds.

10.4 Grant of Christmas bonus chargeable to the barangay relative to the DILG Memorandum Circular No. 2001-175.



SECTION 11. Accreditation. Accreditation shall be granted to those who will qualify. Training and services rendered by the Barangay Tanod (BT) shall be given premium or equivalent credits in any of the following:

- a) Security Guard License – Subject to the approval of the Philippine National Police (PNP) Security Agency and Guard Supervision Division. The General Orientation Course, the Basic Barangay Tanod Training and equivalent number of years of services will pre-qualify the individual tanod for security guard license.
- b) Accredited National Service Training Program – Subject to CHED's approval. The General Orientation Course, the Basic Barangay Tanod Training and equivalent number of years of service as tanod will qualify the tanod for accreditation as equivalent to Reserve Officers Training Corps (ROTC) and civil welfare service under Republic Act No. 9163.
- c) Conferment of Equivalent Civil Service Commission (CSC) Eligibility – Subject to CSC approval. The General Orientation Course, the Basic Barangay Tanod Training, other related training and an equivalent number of years of service as tanod will qualify the individual tanod to an equivalent CSC eligibility.

Only those who pass both the orientation course and the skills training shall be granted/issued accreditation.

SECTION 12. Awards System. The City Government of Baguio shall provide incentives and awards to the best performing Barangay Tanod (BT). The DILG Baguio Field Office shall adopt a system of giving due recognition to extraordinary or commendable accomplishments of a tanod member (individual) or a unit for courageous act, devotion and dedicated service, honesty and loyalty worthy of emulation or whose accomplishment contributed to a large extent to the realization of the city's mandate of crime prevention and promotion of public safety.

SECTION 13. Roles and Responsibilities.

13.1 Barangay.

- a) Shall primarily be responsible for the organization and mobilization of the tanod;
- b) Provide the uniform and equipage with assistance from the City Government; and
- c) Provide Barangay Tanod Training Program in the Barangay Public Safety Plan.

13.2 DILG Baguio City Field Office.

- a) Shall monitor the implementation of the Barangay Tanod Training Program;
- b) Shall orchestrate and catalyze the conduct of the hands-on training;
- c) Shall spearhead the conduct of coaching session and *revalida*; and
- d) Render report through channel.

13.3 Philippine National Police-Baguio City Police Office (PNP-BCPO).

- a) Shall be the principal trainer of the tanod;
 - b) Ensure the conduct of training of the tanod;
 - c) Maintain and support the detail of personnel in the Advocacy Training Organizing Mobilization Monitoring (ATOMM) Team, preferably the Chief of Police;
 - d) Shall perform their roles as required or as may be needed in the implementation of this program; and
 - e) Provide such other support as needed.
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13.4 The City Government of Baguio.

- a) Shall provide fund and logistical support in the conduct of training of the Barangay Tanod (BT);
- b) Shall provide such other resources for the successful implementation of the program;
- c) Ensure effective implementation of the program in the barangay; and
- d) Authorize the City Legal Office (CLO) to provide legal services to Barangay Tanods (BTs) who are charged in court or other administrative bodies for acts performed while in the performance of their official functions.

SECTION 14. Rules of Engagement.

- a) Barangay Tanods shall assist the police by cordoning off the area of the vicinity of the crime scene in order that unauthorized persons shall not mingle or tamper any evidence found within the crime scene.
- b) In case of citizen's arrest, the person must be brought to the nearest police station without delay or if the person to be arrested is armed to call for immediate police assistance.
- c) In all cases the Barangay Tanod (BT) shall protect themselves at all times for self-preservation.

SECTION 15. Funding. Funding for the program shall be incorporated in the budgets of the barangays. The City Government of Baguio and other agencies shall provide financial assistance, in cash or other forms, for the implementation of this Ordinance. Honoraria, allowances, insurance benefits, scholarship and study grants and Christmas bonus that are to be charged against city funds are subject to the availability of said funds and are to be appropriated in the annual budget.

SECTION 16. Separability Clause. If, for any reason or reasons, any part or provision of this Ordinance shall be held to be unconstitutional or invalid, the other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

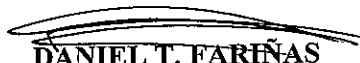
SECTION 17. Repealing Clause. All ordinances, resolutions and regulations or part or parts thereof, which are inconsistent with this Ordinance, are hereby repealed or modified accordingly.

SECTION 18. Effectivity. This Ordinance shall take effect in accordance with the provisions of the Local Government Code of 1991.

Passed.

Hon. Tabora, Hon. Palaganas, Hon. Cariño and Hon. De Vera were out of the Session Hall during the deliberation and voting.

CERTIFIED CORRECT:


DANIEL T. FARINAS
City Vice Mayor and
Presiding Officer

Attested:


PRUDENCIO M. PARNACIO
City Secretary

APPROVED:


DANIEL T. FARINAS
Acting City Mayor

07 JUL 2009